IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No. 306

CP(CAA)/49(AHM)2022
in
CA(CAA)/66(AHM)2021

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

RB Real Estate Pvt Ltd **.....Applicants**
Madhav Urja Pvt Ltd
Madhav Heights Pvt Ltd
Madhav Infra Projects Ltd

Order delivered on 06/06/2023

Coram:

Mr. Deep Chandra Joshi, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

ORDER

The case is fixed for pronouncement of order.

The order is pronounced in open Court vide separate sheet.

-SD-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-SD-

DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
(COURT NO. II)

CP (CAA)/49/NCLT/AHM/2022
IN
CA(CAA)/66/NCLT/AHM/2021

(Sections 230-232 and read with other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016)

In the matter of Scheme of Amalgamation

OF

RB REAL ESTATE PRIVATE LIMITED
(Petitioner Company No. 1/Transferor Company No. 1)

AND
MADHAV URJA PRIVATE LIMITED
(Petitioner Company No. 2/Transferor Company No.2)

AND
MADHAV HEIGHTS PRIVATE LIMITED
(Petitioner Company No. 3/Transferor Company No.3)

WITH
MADHAV INFRA PROJECTS LIMITED
(Petitioner Company No. 4/Transferee Company)

AND
THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Pronounced on: 06.06.2023

Coram:
DEEP CHANDRA JOSHI,
HON'BLE MEMBER (JUDICIAL)
AJAI DAS MEHROTRA,
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

In the matter of:

RB Real Estate Private Limited
(CIN:U45200GJ2006PTC047686)
Registered Office at Madhav House, Plot No. 4, Nr. Pancratna Building, Subhanpura, Vadodara – 390023 (Gujarat)

…. Petitioner Company No. 1/
Transferor Company No.1

Madhav Urja Private Limited
(CIN:U40106GJ2012PTC071267)
Registered Office at Madhav House, Plot No. 4, Nr. Pancratna Building, Subhanpura, Vadodara – 390023 (Gujarat).

….Petitioner Company No. 2/
Transferor Company No. 2

Madhav Heights Private Limited
(CIN:U45201GJ2010PTC061012)
Registered Office at Madhav House, Plot No. 4, Nr. Pancratna Building, Subhanpura, Vadodara – 390023 (Gujarat).

…. Petitioner Company No. 3/
Transferor Company No. 3

Madhav Infra Projects Limited
(CIN: L45200GJ1992PLC018392)
Registered Office at Madhav House, Plot No. 04, Nr. Panchratna Building, Subhanpura, Vadodara – 390023, Gujarat.

…. Petitioner Company No. 4/
Transferee Company

Appearance

For the Petitioners	**:**	Mr. Yuvraj G Thakore, Advocate.
For the OL	**:**	Mr. Suresh Srivastava and Mr. Kamlesh Rathod
For the RD	**:**	Mr. Liladhar Sharma, Asst. Director and Mr. Shiv Pal Singh, Asst. Director
For the Income Tax	**:**	Ms. Pankti Shah and Mr. Kinjal Trivedi, Advocates

ORDER

1. This joint petition has been filed by the petitioner companies under Sections 230-232 & other applicable provisions of the Companies Act, 2013 (for brevity 'the Act') read with the Companies (Compromises,

Arrangements and Amalgamations) Rules, 2016 seeking sanction of the Scheme of Amalgamation between RB Real Estate Private Limited (hereinafter referred to as 'Transferor Company No. 1'), Madhav Urja Private Limited (hereinafter referred to as 'Transferor Company No. 2') and Madhav Heights Private Limited (hereinafter referred to as 'Transferor Company No. 3') with Madhav Infra Projects Limited (hereinafter referred to as 'Transferee Company') with effect from 1st April 2020, being the Appointed Date as mentioned in the Scheme. It is stated that Transferor Companies are wholly owned subsidiaries of the Transferee Company.

2. From the records, it is seen that the first motion application seeking directions for dispensation of the meetings of the equity shareholders, secured and unsecured creditors of the Petitioner Companies was allowed vide order dated 13.07.2022.

3. The 2nd motion joint petition was filed on 29.07.2022 and admitted vide order dated 04.08.2022, issuing Notices to the concerned statutory authorities and also directing publication in the newspapers "Free Press Gujarat" Ahmedabad edition in English and "Lok Mitra" Ahmedabad edition in Gujarati language, having circulation in Ahmedabad. All the Petitioner Companies have filed respective compliance affidavits.

4. The petitioner companies had filed IA No. 81 of 2022 seeking amendment of the Scheme. The said IA was allowed and disposed of vide order dated 05.01.2023.

5. The Regional Director, North Western Region, MCA has filed common report on 25.01.2023 along with the report of RoC, Ahmedabad. They have sought following directions:

   i) The Transferee Company to undertake the compliance of Section 232(3)(i) of the Companies Act, 2013 and to pay fees accordingly.

   ii) The Appointed Date / Transfer Date is 01.04.2020 as per para 1.2 of Part-A of the Scheme, however, the Company Application was filed on 06.09.2021 one year after from the Appointed Date. As per para 6(c) of MCA Circular No. 09/2019 dt. 21.08.2019 "if the 'appointed date' is significantly ante-dated beyond a year from the date of filing, the justification for the same would have to be specifically brought out in the scheme and it should not be against public interest. However, no justification has been provided in the scheme about delay of more than a year between the filing date and the appointed date.

   iii) The petitioner companies have not filed application in prescribed e-form GNL-1 under the MCA 21 portal as per the requirement of

Section 398 and Section 232 (2)(b) of the Companies Act, 2013 r.w. Rule 7 of Companies (Registration Office And Fees) Rules, 2014.

iv) As per the provisions of the Companies Act, 2013 wherein it is mandated certain statutory responsibilities on the part of the public company and its KMP/BoD. A public company so long as remain public company it shall ensure that such statutory requirements of law are duly complied with at relevant time in prescribed manner.

v) The petitioner companies to pay legal fees/cost to the Central Government.

vi) The petitioner companies to preserve its books of accounts, papers and records which shall not be disposed of without prior permission of the Central Government as per the provisions of Section 239 of the Companies Act, 2013.

vii) Necessary stamp duty on transfer of property/assets be paid to the respective authorities before implementation of the Scheme.

viii) The Petitioner Companies to ensure statutory compliance of all applicable Laws and also on sanctioning of the present Scheme, the Transferor Companies shall not be absolved from any of its Statutory liabilities, in any manner.

6. The Official Liquidator, attached with the Hon'ble High Court of Gujarat has filed a separate Report on 27.01.2023 for all the Transferor

Companies and made the common observations, seeking directions as follows:

i) The Transferor Companies to preserve its books of accounts, papers and records and shall not dispose them without prior permission of the Central Govt. as per the provisions of the Section 239 of the Companies Act, 2013.

ii) The Transferor Companies to ensure statutory compliance of all applicable laws and also on sanctioning of the scheme, the Transferor Companies shall not be absolved from any of its statutory liability, in any manner.

iii) For differential fees, the Transferee Company to give undertaking for compliance of Section 232(3)(i) of the Companies Act, 2013.

iv) The Transferee Company to pay such cost and expenses to the Office of the Official Liquidator for the Transferor Companies or any such amount as may be considered appropriate by this Bench.

v) The petitioner companies to lodge a certified copy of order along with the Scheme, with the concerned superintendent of stamp duty for determination of stamp duty payable, if any.

7. The Income Tax Department has filed its Report on 09.02.2023 for all the petitioner companies stating that there are neither any demand nor any pending proceedings against the petitioner companies, which are reproduced hereunder:

S.No.	Name of the Assessee	PAN	Outstanding Dues	Pending Proceedings
1	RB Real Estate Pvt Ltd	AADCR7890P	NIL	NIL
2	Madhav Urja Pvt Ltd	AAICM2161P	NIL	NIL
3	Madhav Heights Pvt Ltd	AAICM6972A	NIL	NIL
4	Madhav Infra Projects Pvt Ltd	AADCM1157C	Rs. 1,17,91,740/-*	NIL

The Income Tax Department has clarified that the demand of Rs.1,17,91,740/- is reflecting because of the technical glitch and there are no outstanding in the Petitioner Transferee Company also.

8. The Petitioner Companies have filed common affidavit on 07.03.2023, in reply to the observations of the Regional Director, the Registrar of Companies, the Official Liquidator and the Income Tax Department. The submission made in above stated replies are as follows:

i) For differential fees, the Transferee Company gave undertaking for compliance of Section 232(3)(i) of the Companies Act, 2013.

ii) For appointed date, that there was some delay in filing of the Application because of the restrictions of COVID-19 in the year 2021. However, the Petitioner Companies have no objections if the Appointed Date is shifted from 01st April 2020 to 01st April 2021 as the scheme is between the Holding Company and its Subsidiary Companies, therefore, no separate approval would be required for changing the appointed date.

iii) For e-form GNL-1, that the Applicant Companies have filed the Application in prescribed form GNL-1 under MCA 21 Portal. Copy of the same is annexed with the reply.

iv) Transferee Company, being a public company, undertakes to make all necessary compliances under the Law and comply with the provisions of the Companies Act, 2013.

v) The Transferee Company gave undertaking to pay legal fees, as per the order.

vi) The Transferee Company gave undertaking to pay the necessary stamp duty on the scheme to the relevant authority in accordance with the applicable Stamp Act/law.

vii) The Transferee Company gave undertaking to preserve the books of accounts, papers, and records of the Transferor Companies and not to dispose of the same without prior permission of the Central Government as per the provisions of Section 239 of the Companies Act, 2013.

viii) The Transferor Companies gave undertaking to lodge a certified copy of the order along with the Scheme with the concerned Superintendent of Stamps for the purpose of adjudication of stamp duty payable,

ix) The Transferee Company gave undertaking to comply with statutory compliances under applicable laws and after the scheme coming into

effect, all liabilities including statutory liabilities of the transferor company stand transferred to the Transferee Company and the same will be paid by the Transferee Company in ordinary course of business and as per applicable law.

x) The Petitioner Transferor Companies shall pay related office expenses of the office of the Official Liquidator as may be considered appropriate by the Tribunal.

xi) That the Income Tax Department have stated that there are NIL Outstanding and there are NIL proceedings against all the Petitioner Companies.

xii) That the Income Tax Department has clarified that the demand of Rs. 1,17,91,740/- is reflecting because of the technical glitch and there are no outstanding in the Petitioner Transferee Company.

xiii) That the Petitioner Companies have given undertaking to comply with the provisions of the Income Tax Act and the Rules framed thereunder and this sanctioning of the Scheme would not absolve any of the Company from any of the liabilities.

9. As recorded in the order dated 22.03.2023, Mr. Liladhar Sharma, Assistant Director from RD Office submitted that they have no objection to the approval of the scheme. Similarly, the counsel for the Income tax Department also stated that she has no objection to approval of the Scheme, as recorded in daily order dated 22.03.2023.

As recorded in the daily order dated 19.04.2023, Mr. Srivastava appearing for OL office stated that OL office has no objection to the approval of the scheme.

10. As the first Motion Application was filed on 13.08.2021, the petitioner Transferor companies have filed their audited Financial Statements as on 31.03.2021, the Petitioner Transferee Company has filed latest audited Financial Statements as on 31.03.2020 and unaudited financial statements as on 31.12.2020, which are annexed with the petition.

11. Heard submissions and perused documents placed on record. Considering the approval accorded by the members and creditors of the Petitioner Companies to the proposed Scheme, and the no objection filed by the respective regulatory authorities, it appears that the requirements of the provisions of Sections 230 and 232 are satisfied by the petitioner companies. It seems that the proposed Scheme of Amalgamation is bona fide and in the interest of the shareholders and creditors. Therefore, petition is allowed and the Scheme envisaging amalgamation of RB Real Estate Private Limited (Transferor Company No. 1), Madhav Urja Private Limited (Transferor Company No. 2) and Madhav Heights Private Limited (Transferor Company No. 3) with Madhav Infra Projects Limited, the Transferee Company is hereby sanctioned with Appointed Date of 1st April, 2021, as discussed in para-8(ii) (supra). The Appointed Date is changed to 1st April 2021,

considering the no objection given by the petitioner companies to the said change. It is declared that the said sanctioned scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the scheme.

11.1 Notwithstanding the above, if any deficiency is found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioners.

11.2 While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST etc., or any other charges or payment in accordance with law, or any kind of waiver in respect of any permission / compliance with any other requirement which may be specifically required under any law.

11.3 **The Scheme is sanctioned with following directions:**

(i) The Scheme of Amalgamation as annexed herewith as "Annexure A" with changed Appointed Date of 01.04.2021 instead of 01.04.2020, is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

(ii) It is declared that the Transferor Companies shall be dissolved without winding up.

(iii) All the properties mentioned in schedule as "Annexure B", right, title and interest of the Transferor Companies specified in the schedule hereto and all the other properties, rights and powers of the Transferor Companies be transferred without any further act or deed to the Transferee Company and accordingly the same shall, pursuant to Section 232 of the Act, vest in the Transferee Company for all the estate and interest of the Transferor Companies, therein but subject nevertheless to all charges now affecting the same, if any.

(iv) Upon the Scheme becoming finally effective, in consideration of the transfer and vesting of the Undertaking of Transferor Companies in the Transferee Company in terms of the Scheme, all equity shares of the transferor Companies held by the Transferee Company shall stand cancelled without further application, act or deed. It is clarified that no new shares shall be issued, or payment made in cash whatsoever by the transferee company in lieu of shares of the transferor Companies.

(v) Upon the Scheme becoming finally effective, the shares or the share certificates of the transferor Companies in relation to the shares held by the transferee Company, as the case may be shall, without any further application, act, instrument or deed be deemed to have been

automatically cancelled and be of no effect without any necessity of them being surrendered.

(vi) All proceedings, if any, now pending by or against the Transferor Companies be continued by or against the Transferee Company.

(vii) All workers / employees of all the Transferor Companies shall be deemed to become the workers /employees of the Transferee Company with effect from the Appointed Date, and shall stand absorbed in the Transferee Company in accordance with the Scheme without any interruption of service and on terms and conditions no less favourable than those on which they are engaged by the Transferor Companies, as on the Effective Date.

(viii) The Petitioner companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the entire Undertaking of the Transferor Companies shall stand transferred to the Transferee Company and the Registrar of Companies shall place all documents relating to the Transferor Companies in the file relating to the Transferee Company and the files relating to the said companies shall be treated accordingly.

(ix) All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal who shall issue the certified copy of this order along with the Scheme immediately.

(x) The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme attached as Annexure-A and Schedule of Assets of the Transferor Companies attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

(xi) The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme & Schedule of Assets with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

(xii) The legal fees and expenses of the office of the Regional Director are quantified at Rs.10,000/-in respect of the petitioner companies. The said fees to the Regional Director shall be paid by the Transferee Company.

(xiii) The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of the Transferor Companies. The said fees to the Official Liquidator shall be paid by the Transferor Companies.

16. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

17. The Company Petition CP (CAA)/49/NCLT/AHM/2022 connected with CA(CAA)/66/NCLT/AHM/2021 are disposed of, in terms of above order.

-SD- -SD-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

Sudha-Steno /
Abhishek -LRA

Annexure "A"

SCHEME OF AMALGAMTION

BETWEEN

RB REAL ESTATE PRIVATE LIMITED

AND

MADHAV URJA PRIVATE LIMITED

AND

MADHAV HEIGHTS PRIVATE LIMITED

WITH

MADHAV INFRA PROJECTS LIMITED

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

UNDER

SECTIONS 230 to 232 OF THE COMPANIES ACT, 2013

READ WITH

RELEVANT RULE OF COMPANIES (COMPROMISE, ARRANGEMENTS AND AMALGAMATIONS) RULES,2016

AND OTHER APPLICABLE PROVISIONS

I. PURPOSE OF THE SCHEME

1.1 The Scheme of Arrangement is presented under Section 230 to 232 of the Companies Act, 2013 read with relevant Rules of Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and include any statutory modification or re-enactment thereof for the time being in force for amalgamation of RB Real Estate Private Limited (RBR), Madhav Urja Private Limited (MUPL) and Madhav Heights Private Limited (MHPL) with Madhav Infra Projects

Limited (MIPL). RBR, MUPL, MHPL are wholly owned subsidiaries of MIPL. The present scheme is therefore subject to approval of the National Company Law Tribunal (NCLT), Ahmedabad Bench.

1.2 The transferor Companies are wholly owned subsidiary Companies of transferee Company, there is no consideration, and the transferee Company will not issue any shares under this scheme of arrangement. The existing shareholding of the transferee Company in transferor Companies gets cancelled pursuant to the Scheme of Arrangement.

II. PARTS OF THE SCHEME

The Scheme of Arrangement is divided into the following parts:

Part A – Deals with the Definitions, Interpretation and Share Capital;

Part B –Deals with the Amalgamation by the transfer and vesting of undertakings of the Transferor Companies into the Transferee Company in accordance with the Scheme i.e. from RBR, MUPL, MHPL into MIPL;

PART A

DEFINITIONS, INTERPRETATION AND SHARE CAPITAL

1. **DEFINITIONS**

In this Scheme of Arrangement, unless inconsistent with the subject or context, the following expression shall have the meanings respectively assigned against them:

1.1 **"Act" or "the Act"** means the Companies Act, 2013, the rules and regulations made thereunder and will include any statutory modification or re-enactment thereof for the time being in force;

1.2 **"Appointed Date"** means April 01, 2020 or such other date as may be fixed or approved by the Hon'ble Tribunal.

1.3 "**Amalgamation**" means the transfer and vesting of undertakings of the Transferor Companies into the Transferee Company in accordance with the Scheme.

1.4 "**Board**" or "**Board of Directors**" means the respective Board of Directors of RBR, MUPL, MHPL and MIPL and shall include a committee of such board duly constituted and authorized

1.5 "**Business Day**" means any day, other than a Saturday and Sunday, on which banks are generally open for business in Gujarat, India;

1.6 "**Competent Authority**" means the National Company Law Tribunal ("NCLT") as constituted and authorized as per the provisions of the Companies Act, 2013 for approving any scheme of amalgamation of companies under the relevant provisions of the Act.

1.7 "**Effective Date**" means the date or last of the dates on which the certified copies of the order of Tribunal (as defined

hereinafter), under section 232 of the Act, sanctioning this Scheme, is filed by the respective Companies with RoC (as defined hereinafter);

Any references in the Scheme to the date of "upon the Scheme becoming effective" or "effectiveness of the Scheme" shall mean the Effective Date.

1.8 **Stock Exchange** means BSE Limited the exchange where the shares of the transferee Company is listed

1.9 "**Scheme**" means this scheme of Amalgamation in its present form as submitted to the Tribunal (as defined hereinafter) or this Scheme with such modification(s), if any, as may be directed by members and/or creditors of respective Companies or such modifications(s) as may be imposed by any Governmental and Registration Authority and accepted by Board of Companies and/or directed to be made by the Tribunal while sanctioning the Scheme;

1.10 "**Tribunal**" means the National Company Law Tribunal (**NCLT**) of Judicature of Gujarat at Ahmedabad having jurisdiction in relation to RBR, MUPL, MHPL and MIPL or such other forum or authority as may be vested with any of the powers of a NCLT in relation to the Scheme under the Act

1.11 **"Transferee Company"** shall mean Madhav Infra Projects Limited (MIPL) (CIN: L45200GJ1992PLC018392), a company incorporated under the Act, having its registered office at Madhav House, Plot No. 04, Nr. Panchratna Building, Subhanpura Vadodara - 390023, Gujarat.The transferee Company is a listed entity with BSE Limited with the Scipt code 539894. All the three trasferor Companies are wholly owned subsidary Companies of this Company. The PAN of the Company is AADCM1157C.

1.12 **"Transferor Companies'** means the following companies:-

a. RB Real Estate Private Limited (RBR) [CIN: U45200GJ2006PTC047686]: The Company incorporated under the Companies Act, 1956/ 2013 and with having its registered office Madhav House, Plot No. 04, Nr. Panchratna Building, Subhanpura Vadodara - 390023, Gujarat. The PAN of the Company is AADCR7890P.

b. Madhav Urja Private Limited (MUPL) [CIN: U40106GJ2012PTC071267]: The Company incorporated under the Companies Act, 1956 and with having its registered office at Madhav House, Plot No. 04, Nr. Panchratna Building, Subhanpura Vadodara - 390023 (Gujarat). The PAN of the Company is AAICM2161P.

c. Madhav Heights Private Limited (MHPL) [CIN: U45201GJ2010PTC061012]: The Company incorporated under the Companies Act, 1956 and with having its registered office at Madhav House, Plot No. 4, Nr. Pancratna Building, Subhanpura, Vadodara - 390023 (Gujarat). The PAN of the Compnay is AAICM6972A.

1.13 **"Undertakings of Transferor Companies"** means and include:-

a) All the assets and properties of the Transferor Companies as on the Appointed Date.

b) All the debts, liabilities, duties and obligations of the Transferor Companies as on the Appointed Date.

c) Without prejudice to the generality of Sub-clause (a) above the undertaking of the transferor companies shall include all the transferor companies' reserves, provisions, funds, moveable and immovable properties, assets including investments, claims, powers, authorities, authorized capital, allotment, approvals,

consents, registrations, contracts, enactments, deferred income, arrangements, rights, titles, interest, benefits, advantages, lease-hold rights and other intangible rights, industrial and all licenses, permits, pre & post authorizations, quota, rights, trade marks, patents, brands, secret formulae, drawings, research rights and other industrial intellectual properties, imports, telephone/facsimile/telex and other communication facilities, Electrical Connections, non-conventional devices and equipments including Computers, Hardwares, Softwares, and other electronic equipments and instruments, system of any kind whatsoever, rights and benefits of all agreements and other interests including rights & benefits under various schemes of different Taxation Laws as may belong to or be available to the Transferor Companies, rights and powers of every kind, nature and description of whatsoever probabilities, liberties, easements, advantages, and approval of whatsoever nature and wheresoever situated, belonging to or in ownership, power or possession or control or entitlement of the Transferor Companies.

2. **DATE OF TAKING EFFECT AND OPERATIVE DATE**

The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the Tribunal, shall be effective from the Appointed Date but shall be operative from the Effective Date unless the context requires otherwise. Subject to provision of Section 232 of the Companies Act, 2013.

3. **DESCRIPTION OF THE COMPANIES INVOLVED**

3.1 RB Real Estate Private Limited (Email Id: secretarial@madhavcorp.com) or Transferor Company bearing CIN: U45200GJ2006PTC047686 was incorporated as private limited Company under the Companies Act, 1956on 7th

February, 2006 vide certificate of incorporation issued by Asst Registrar of Companies, Gujarat, Dadra & Nagar Haveli. The registered office of the Company is at Madhav House, Plot No. 04, Nr. Panchratna Building, Subhanpura Vadodara - 390023.

The Main object of the Company is to carry on engineering construction and construction activity. The present Board of Directors of the Company is as follow.

Sr.No.	Name of Director	DIN	Address
1	Ashok Khurana	00003617	802, Green Woods Infinity, Opp. Vicenza Highlands, GotriSevasi Road, Vadodara - 391101
2	MohananChoran	00028024	1122, Dutt Nagar, Near Gayatri Nagar, Gotri, Vadodara 390021
3	ChhatrasinhPadhiar	07964655	B-79, Deep Jyoti Tenament, Bajwa Road, Vadodara - 391310

The meeting of Board of Director was held on August 13, 2022 at registered office to approve the scheme of amalgamation. All the Directors were present in the Board Meeting and the said scheme was approved unanimously.

The present Promoters of the Company is as follow:

Sr. No.	Name of Promoter	PAN	Address
1	Madhav Infra Projects Ltd.	AADCM1157C	Madhav House, , Near Panchratna Building, Subhanpura, Vadodara – 390023

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3.2 Madhav Urja Private Limited (Email Id : info@madhavcorp.com) Or Transferor Company bearing CIN: U40106GJ2012PTC071267 was incorporated as Private Limited Company under the Companies Act, 1956 on 24th July, 2012 vide certificate of incorporation issued by Asst Registrar of Companies, Gujarat, Dadra & Nagar Haveli. The registered office of the Company is at Madhav House, Plot No. 04, Nr. Panchratna Building, Subhanpura Vadodara - 390023.

The main object of the Company to carry on the business of generating power and trading, purchasing, marketing, selling, importing, exporting producing, manufacturing, transmitting, commissioning, distributing, supplying, exchanging or otherwise dealing in all aspects of Thermal, hydro, Nuclear, Solar, Wind Power and power generated through Non-Conventional / Renewable Energy sources including construction, generation, operation and to provide for all type of services for engineering, construction and procurement (EPC) services to generate power from solar and renewable energy recourse and for installation and maintenance of solar power plant, roof tops and any kind of equipment system related to solar and to provide services for maintenance, renovation and modernization of all kind of equipment required for solar Power and renewable Energy Resource, power Station, Gas Turbine, Wind Farms Projects and also to undertake the business of other allied/ancillary industries including those for utilization /sale/ supply of steam and ash generated at power station and other byproducts and install, operate and manage all necessary items equipments, cable, wires lines establishments and works in India and abroad.

The present Board of Directors of the Company is as follow:

Sr.No.	Name of Director	DIN	Address

1	Amit Khurana	00003626	6, Amravati Society, Gotri Road, Vadodara - 390023
2	Chhatrasinh Padhiar	07964655	B-79, Deep Jyoti Tenament, Bajwa Road, Vadodara - 391310
3	Ashwin Kayasth	07963719	D-27, Pushti Dwar Society, Waghodia Road, Vadodara - 390019

The meeting of Board of Director was held on August 13, 2022 at registered office to approve the scheme of amalgamation. All the Directors were present in the Board Meeting and the said scheme was approved unanimously.

The present Promoters of the Company is as follow:

Sr. No.	Name of Promoter	PAN	Address
1	Madhav Infra Projects Ltd.	AADCM1157C	Madhav House, Near Panchratna Building, Subhanpura, Vadodara - 390023

3.3 Madhav Heights Private Limited (Email Id: secretarial@madhavcorp.com) or Transferor Company bearing CIN: U45201GJ2010PTC061012 was incorporated as private limited Company under the Companies Act, 1956 on 5th June, 2010 vide certificate of incorporation issued by Asst. Registrar of Companies, Gujarat, Dadra & Nagar Haveli. The registered office of the Company is at Madhav House, Plot No. 4, Nr. Pancratna Building, Subhanpura, Vadodara - 390023.

The main Object of the Company is to carry on in India or elsewhere the business of builders, contractors, dealers, designers, architects, constructors of all types of buildings and structures including houses, co-operative housing societies, associations, housing schemes, flats, apartments, row houses, bunglows, twin bunglows, farms, farm houses, tenaments,

offices, godowns, warehouses, shops, malls, showrooms, factories, sheds, hospitals, hotels, motels, holiday resorts, shopping cum residential complexes, infrastructure work like bridges, roads, water supply system, drainage system and to develop, erect, install, alter, improve, add, establish, renovate, recondition, protect, enlarge, repair, demolish, remove, replace, maintain, buy, sell, commercialize, turn to account, fabricate, handle and control, all such buildings and structures, and to purchase, deal in all types of immovable properties for development/ construction or for resale and any other facility that may be noticed in future as infrastructure facility either by the state Governments and/or the Government of India or any other appropriate authority or body and all kinds of civil works to deal with and improve such properties either as owners or as agents either individually or as joint venture with any other company/firm/individual/consultant whether local or foreign.

The present Board of Directors and Promoters of the Company is as follow:

Sr. No.	Name of Director	DIN	Address
1	Ashok Khurana	00003617	802, Green Woods Infinity, Opp. Vicenza Highlands, Gotri Sevasi Road, Vadodara - 391101
2	Mohanan Choran	00028024	1122, Dutt Nagar, Near Gayatri Nagar, Gotri, Vadodara 390021
3	Chhatrasinh P. Padhiar	07964655	B-79, Deep Jyoti Tenament, Bajwa Road, Vadodara - 391310

The meeting of Board of Director was held on August 13, 2022 at registered office to approve the scheme of amalgamation. All the

Directors were present in the Board Meeting and the said scheme was approved unanimously.

The present Promoter of the Company is as follow:

Sr. No.	Name of Promoter	PAN	Address
1	Madhav Infra Projects Ltd.	AADCM1157C	Madhav House, Near Panchratna Building, Subhanpura, Vadodara - 390023

3.4 Madhav Infra Projects Limited (Email Id: gopal.shah@madhavcorp.com) or transferee Company bearing CIN: L45200GJ1992PLC018392 was incorporated as Myraj Consultancy Private Limited under the Companies Act, 1956 on 7th October, 1992 vide certificate of incorporation issued by Registrar of Companies, Gujarat, Dadra & Nagar Haveli. The Company was converted into public limited Company on 16th December, 1994. The name of the Company was changed to Madhav Infra Projects Limited vide certificate dated 12th June, 2013. Previously the Registered office of the Company was at 24, Laxmi chambers, Navjeevan Press Road, Opp. Old Gujarat High Court, Ahmedabad - 380014. The registered office of the Company was changed from 24, Laxmi chambers, Navjeevan Press Road, Opp. Old Gujarat High Court, Ahmedabad-380014 to Madhav House, Plot No. 04, Nr. Panchratna Building, Subhanpura, Vadodara – 390023 w.e.f 1st October, 2017.

The main Object of the Company is to carry on engineering construction, construction activity and generating power through non-conventional /renewable energy. The objects clause of the Company was changed on 9th March, 2020 and main object clause include object for carrying the Leasing, Trading, Hire purchase, Charting, renting of all kinds of equipment's, diesel

generator Sets, plant and machinery, house hold articles and other movable and immovable properties.

The present Board of Directors of the Company is as follow:

Sr. No.	Name of Director	DIN	Address
1	Ashok Khurana	00003617	802, Green Woods Infinity, Opp. Vicenza Highlands, GotriSevasi Road, Vadodara -391101
2	Amit Khurana	00003626	6, Amravati Society, Gotri Road, Vadodara - 390023
3	Mayur Parikh	00005646	A/52, Shaligram 3, Prahladnagar, Satellite, Ahmedabad -380015
4	Heena Parikh	02879703	T/1, Sankul Appt., Alkapuri Soc., GulbaiTekra, Ambawadi, A'Bad - 380015
5	Pooja Shah	07502838	35/1, Jawahar Nagar Society, Vasna, Ahmedabad -380007
6	Jaini Jain	07859496	2, Avdishver Flat, Nr. Zaveri Park, Naranpura, A'bad -380013

The meeting of Board of Director was held on August 13, 2022 at registered office of the Company to approve the scheme of amalgamation. All the Directors were present in the Board Meeting and the said scheme was approved unanimously.

The present Promoters of the Company is as follow:

Sr. No.	Name of Promoter	PAN	Address
1	Ashok Khurana	ADKPK409J	802, Green Woods Infinity, Opp. Vicenza Highlands, GotriSevasi Road, Vadodara -391101
2	Amit Khurana	ADDPK6791N	6, Amravati Society, Gotri Road, Vadodara - 390023

4. **SHARE CAPITAL**

4.1 The share capital of RBR as at March 31, 2020 is as under:

Particulars	Amount (in Rs.)
Authorised Share Capital	
2,50,000 Equity Shares of Rs. 10/- each	25,00,000
Total	**25,00,000**
Issued, Subscribed and Paid-up Share Capital	
2,50,000 Equity Shares of Rs. 10/- each fully paid	25,00,000
Total	**25,00,000**

There is no change in the Capital Structure of the Company since then.

4.2 The share capital of MUPL as at March 31, 2020, is as under:

Particulars	Amount (in Rs.)
Authorised Share Capital	
5,00,000 Equity Shares of Rs. 10/- each	50,00,000
Total	**50,00,000**
Issued, Subscribed and Paid-up Share Capital	
5,00,000 Equity Shares of Rs. 10/- each fully paid	50,00,000
Total	**50,00,000**

There is no change in the Capital Structure of the Company since then.

4.3 The share capital of MHPL as at March 31, 2020, is as under:

Particulars	Amount (in Rs.)
Authorised Share Capital	
4,00,000 Equity Shares of Rs. 10/- each	40,00,000
Total	**40,00,000**
Issued, Subscribed and Paid-up Share Capital	
4,00,000 Equity Shares of Rs. 10/- each fully paid	40,00,000
Total	**40,00,000**

There is no change in the Capital Structure of the Company since then.

4.4 The share capital of MIPL as at March 31, 2020, is as under:

Particulars	Amount (in Rs.)
Authorised Share Capital	
2,65,00,000 Equity Shares of Rs. 10/- each#	26,50,00,000
5,55,00,000 Preference Shares of Rs.10/- each	55,50,00,000
Total	**82,00,00,000**
Issued, Subscribed and Paid-up Share Capital	
64,05,724 Equity Shares of Rs. 10/- each fully paid	6,40,57,240
5,12,52,600 1% NCNC* Preference Shares of Rs. 10/- each fully paid	51,25,26,000
Total	**57,65,83,240**

*Non-Cumulative Non-Convertible Preference Shares

#the Authorised Capital of the Company shall be increased by Rs. 800,00,000/- from the amalgamation with the MSK Projects (India)(JV) Limited vide order of NCLT, Ahmedabad dated 31st August, 2017, the effect of said capital yet not reflected in the master data of the Ministry of Corporate Affairs, due to pending of approval of form of INC 28.

The Company has sub divided its equity Capital from Rs. 10/- to Rs. 1/- in April 27, 2020 and declared Bonus in ration of 3:1 on August 06, 2020.

The Capital Structure of the Company as on date is as under:

Particulars	Amount (in Rs.)
Authorised Share Capital	
26,50,00,000 Equity Shares of Rs. 1/- each	26,50,00,000
5,55,00,000 Preference Shares of Rs.10/- each	55,50,00,000
Total	**82,00,00,000**
Issued, Subscribed and Paid-up Share Capital	
25,62,28,960Equity Shares of Rs. 1/- each fully paid	25,62,28,960
5,12,52,600 1% NCCC* Preference Shares of Rs. 10/- each fully paid	51,25,26,000
Total	**76,87,54,960**

PART B

TRANSFER AND VESTING OF UNDERTAKINGS OF TRANSFEROR COMPANIES INTO TRANSFEREE COMPANY I.E., UNDERTAKINGS OF RBR, MUPL, MHPL INTO MIPL

5. **TRANSFER AND VESTING OF UNDERTAKINGs**

5.1 Upon the scheme becoming effective and with effect from the Appointed Date, the whole of the undertaking and assets and properties of the RBR, MUPL, MHPL (Transferor Companies), shall, under the provisions of Section 230- 232 and all other applicable provisions, if any, of the Act, without any further act or deed, stand transferred to and vested in and/or deemed to be transferred to and vested in MIPL, so as to vest in MIPL all the rights, title and interest pertaining to the Undertakings, as a going concern. The transfer and vesting of Undertakings of RBR, MUPL, MHPL shall happen in the following manner:

5.1.1. Any and all assets relating to the Transferor Companies, as are movable in nature or incorporeal property or are otherwise capable of transfer by manual delivery or by endorsement and delivery or by vesting and recorded pursuant to this Scheme shall stand transferred and vested by Transferor Companies to MIPL (Transferee Company) and shall become the property and an integral part of MIPL. The vesting pursuant to this sub-clause shall be deemed to have occurred by manual delivery or endorsement, as appropriate to the property being vested and title to the property shall be deemed to have been transferred and vested accordingly.

5.1.2. Any and all movable properties of Transferor Companies, other than those specified in sub-clause 5.1.1 above, including sundry debtors, outstanding loans and advances, if any, recoverable in cash or in kind or for value to be received, bank

balances and deposits, if any, with Government, semi-Government, local and other authorities and bodies, customers and other persons, shall without any further act, instrument or deed, be transferred and vested as the property of the MIPL.

5.1.3. It is hereby provided that all immovable properties relating to the Transferor Companies shall stand vested in and/ or be deemed to have been vested in the Transferee Company, by operation of law pursuant to the vesting order of the NCLT, Ahmedabad Bench sanctioning the Scheme and the order of the NCLT shall for all purposes be treated as the instrument conveying transfer of such properties and assets to Transferee Company without requiring the execution of any other deed or document or instrument of conveyance.

5.1.4. With effect from the Appointed Date, all debts, liabilities, contingent liabilities, duties and obligations of every kind, nature and description of Transferor Companies shall, without any further act or deed be and stand transferred to MIPL so as to become as from the Appointed Date, the debts, liabilities, contingent liabilities, duties and obligations of MIPL and it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, liabilities, contingent liabilities, duties and obligations have arisen, in order to give effect to the provisions of this sub-clause.

5.1.5. With effect from the Appointed Date and upon the Scheme becoming effective, any statutory licenses, permissions or approvals or consents, held by Transferor Companies required to carry on operations shall stand vested in or transferred to MIPL without any further act or deed, and shall be appropriately mutated by the statutory authorities concerned therewith in favour of MIPL. The benefit of all statutory and regulatory

permissions, environmental approvals and consents, registration or other licenses, and consents shall vest in and become available to MIPL pursuant to the Scheme.

5.2 The transfer and vesting of Transferor Companies as aforesaid shall be subject to the existing securities, charges, mortgages and other encumbrances if any, subsisting over or in respect of the property and assets or any part thereof.

5.3 With effect from the Appointed Date:

a) where any of the debt, liability, duty or obligation pertaining of the Transferor Companies as on the Appointed Date shall be deemed to have been for and on account of MIPL;

b) all debts, liabilities duties or obligations incurred or undertaken by Transferor Companies after the Appointed Date but prior to the Effective Date, shall be deemed to have been incurred or undertaken for and on behalf of MIPL and to the extent they are outstanding on the Effective Date, shall also without any further act, deed, instrument, matter or thing be and stand transferred to MIPL and shall become the debts, liabilities, duties and obligations of MIPL which it shall meet, discharge and satisfy; and

c) all assets accrued to and/or acquired by Transferor Companies after the Appointed Date but prior to the Effective Date, shall be deemed to have been accrued to and/or acquired for and on behalf of MIPL and shall also without any further act, instrument, deed, matter or thing be and stand transferred to MIPL to that extent and shall become the assets of MIPL.

6. ISSUE OF SHARES AND CANCELLATION OF SHARES

6.1 Upon the Scheme becoming finally effective, in consideration of the transfer and vesting of the Undertaking of Transferor

Companies in the Transferee Company in terms of the Scheme, all equity shares of the transferor Companies held by the transferee Company shall stand cancelled without further application, act or deed. It is clarified that no new shares shall be issued, or payment made in cash whatsoever by the transferee company in lieu of shares of the transferor Companies.

6.2 Upon the Scheme becoming finally effective, the shares or the share certificates of the transferor Companies in relation to the shares held by the transferee Company, as the case may be shall, without any further application, act, instrument or deed be deemed to have been automatically cancelled and be of no effect without any necessity of them being surrendered.

7. **ACCOUNTING TREATMENT**

7.1 Upon the Scheme being effective, the relatable assets and liabilities of, the Transferor Companies shall be transferred to and vested in the books of the Transferee Company at the same values as appearing in the books of the Transferor Companies on the Appointed Date.

7.2 The difference in the value of the net assets of the Transferor Companies as on Appointed Date and the consideration value determined pursuant to this Scheme, if any, shall be accounted for in the books of the Transferee Company as per "Pooling of interest" method prescribed under AS-14 on accounting for amalgamation under Companies Act. The difference in the value shall be debited to Goodwill or Capital Reserve as the case may be in the books of Transferee Company.

7.3 The investment made in the share capital of the transferor Companies by the transferee Company shall stand cancelled. The difference, if any, arising between the investment held by the transferee Company and the amount of share capital of the

transferor companies shall be adjusted against the reserves (including capital reserve) of the Combined entity and reflected as appearing in the consolidated financial statements of the transferee Company immediately prior to the appointed date.

7.4 An amount equal to the balance lying to the credit of "Profit and Loss Account" as on the Appointed Date in the books of Transferor Companies shall constitute the Transferee Company's free reserve as effectively as if the same were created by the Transferee Company out of its own earned and distributable profits.

7.5 Loans and advances and other dues outstanding between Transferee Company and Transferor Companies will stand cancelled and there shall be no further obligation/outstanding in that behalf.

7.6 In case of any difference in accounting policy between the Transferor Companies and the Transferee Company, the impact of the same till the amalgamation will be quantified and adjusted in the Revenue Reserve(s) to ensure that the financial statement of the Transferee Company reflects the financial position on the basis of consistency in the accounting policy.

7.7 Notwithstanding the above, the Board of Directors of the Transferee Company in consultation with its Auditors, is authorized to account any of these balances in any manner whatsoever as may be deemed fit.

7.8 The inter-se holding of the shares between the Transferor Companies and the Transferee Company shall stand cancelled without making any separate compliance with the provisions of Sec. 66 of the Companies Act, 2013 in view of the fact that the inter-se holding is being cancelled by virtue of the present

Scheme u/s. 230-232 of the Companies Act, 2013 and in such cases, no separate compliances of any other provisions is necessary.

8. **CONDUCT OF BUSINESS BY TRANSFEROR COMPANY TILL EFFECTIVE DATE**

With effect from the Appointed Date and upto the Effective Date:

8.1 The Transferor Companies shall carry on and be deemed to have carried on all its business and activities and shall be deemed to have held and stood possessed of and shall hold and stand possessed of all the said assets for and on account of and in trust for the Transferee Company.

8.2 All the profits or incomes accruing to the Transferor Companies or losses or expenditure arising or incurred by it shall, for all purposes, be treated as the profits or incomes or losses or expenditure of the Transferee Company as the case may be.

8.3 The Transferor Companies shall carry on its business activities, with reasonable diligence, business prudence and shall not, without the written consent of Board of Directors of the Transferee Company, alienate, charge, mortgage, encumber or otherwise deal with the said assets or any part thereof except in the ordinary course of their business except pursuant to any pre-existing obligation undertaken by the Transferor Companies prior to the Appointed Date.

8.4 The Transferor Companies shall not, without the written consent of the Board of Directors of the Transferee Company, undertake any new business.

8.5 The Transferor Companies shall not vary the terms and conditions of the employment of its employees except in the

ordinary course of business and with the mutual consent of the Board of Directors of the Transferee Company.

8.6 The Transferor Companies shall not undertake any additional financial commitments of any nature whatsoever, borrow any amounts or incur any other liabilities or expenditure without the written consent of the Board of Directors of Transferee Company.

8.7 The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to the National Company Law Tribunal and other related agencies, departments and other authorities concerned as are necessary under any law for such consents, licenses, permissions, approvals and sanctions which the Transferee Company may require to own and operate the businesses of the Transferor Companies.

9. **TRANSFEROR COMPANYIES' STAFF, WORKMEN AND EMPLOYEES**

All the staff, workmen or other employees in the service of the Transferor Companies immediately preceding the Effective Date shall become the staff, workmen and employees of the Transferee Company on the basis that :

9.1 Their services shall be deemed to have been continuous and not have been interrupted by reason of the said transfer.

9.2 The terms and conditions of service applicable to such staff, workmen or employees after such transfer shall not in any way be less favorable to them than those applicable to them immediately preceding the transfer date.

9.3 The Transferor Companies shall not vary the terms and conditions of the service of their staff, workmen and employees except in the ordinary course of business.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

MADHAV URJA PRIVATE LIMITED

MADHAV INFRA PROJECTS LIMITED

9.4 It is expressly provided that as far as Provident Fund, Gratuity Fund, Superannuation Fund or any other Fund created or existing for the benefit of the staff, workmen and other employees of the Transferor Companies are concerned, upon the Scheme becoming effective, the Transferee Company shall (to the extent of the services of the Transferred Employees) stand substituted for the Transferor Companies for all purposes whatsoever relating to the administration or operation of such Funds or in relation to the obligation to make contributions to the said Funds in accordance with provisions of such Funds as per the terms provided in the respective Trust Deeds. It is the aim and intent that all the rights, duties, powers and obligations of the Transferor Companies in relation to such Funds shall become those of the Transferee Company and all the rights, duties and benefits of the employees of the Transferor Companies under such Funds and Trusts shall be protected. It is clarified that the services of the employees of the Transferor Companies will also be treated as having been continuous and shall not be treated as having been broken for the purpose of the aforesaid Funds or provisions.

10. **LEGAL PROCEEDINGS**

If any suit, petition, appeal, revision or other proceedings of whatsoever nature (hereinafter called "the proceedings") by or against the Transferor Companies be pending, the same shall not abate, be discontinued or be in any way prejudicially affected by reason of the transfer of the undertaking of the Transferor Companies or of anything contained in the Scheme, but the proceedings may be continued, prosecuted and enforced by or against the Transferee Company in the same manner and to the same extent as it would be or might have been continued, prosecuted and enforced by or against the Transferor Companies as if the Scheme had not been made. On and from the Effective

Date, the Transferee Company shall and may initiate any legal proceedings for and on behalf of the Transferor Companies or either of them as the case may be in its own name.

11. **CONTRACTS, DEEDS, ETC.**

11.1 Subject to all the provisions of this Scheme, all contracts, deeds, bonds, agreements, arrangements and other instruments of whatsoever nature to which any of the Transferor Companies are party or to the benefit of which the Transferor Companies may be eligible and which are subsisting or having effect immediately before the Effective Date, shall be in full force and effect against or in favour of the Transferee Company as the case may be and may be enforced as fully and effectively as if, instead of the said Transferor Companies, the Transferee Company had been a party or beneficiary thereto.

11.2 The Transferee Company may, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required, under any law or otherwise, execute deeds, writings or confirmations or enter into a tri-partite arrangement, confirmation or novation to which the Transferor Companies will, as may be necessary also be a party in order to give formal effect to this Clause if so required or become necessary. The Transferee Company shall, under the provisions of this Scheme, be deemed to be authorised to execute any such writings on behalf of Transferor Companies and to carry out or perform all such formalities or compliances referred to above on the part of the Transferor Companies.

12. **DIVIDEND, PROFITS, BONUS/RIGHT SHARES BY THE TRANSFEROR COMPANY**

Except with the express consent of the Board of Directors of the Transferee Company during the pendency of the present

Scheme being sanctioned and upto the Effective Date, the Transferor Companies shall not:

12.1 Declare any dividend for period commencing from the Appointed Date up to and including the Effective Date.

12.2 Issue or allot any right shares or bonus shares out of its authorized or unissued Share Capital for the time being.

13. **AMENDMENT TO MEMORANDUM AND ARTICLES OF ASSOCIATION OF THE TRANSFEREE COMPANY**

13.1 Upon coming into effect of the Scheme, the Authorized Share Capital of:

a) The Authorised Share Capital of the RBR (Transferor Company) of Rs. 25,00,000/- (Twenty Five lakh Only) or such amount as may be on the Effective Date, shall be added to the Authorized Share Capital of the Transferee Company, as on the Effective Date, without any further act or deed and without any further payment of the stamp duty or the registration fees.

b) The Authorised Share Capital of the MUPL (Transferor Company) of Rs. 50,00,000/- (Fifty lakh Only) or such amount as may be on the Effective Date, shall be added to the Authorized Share Capital of the Transferee Company, as on the Effective Date, without any further act or deed and without any further payment of the stamp duty or the registration fees.

c) The Authorised Share Capital of the MHPL (Transferor Company) of Rs. 40,00,000/- (Forty lakh Only) or such amount as may be on the Effective Date, shall be added to the Authorized Share Capital of the Transferee Company, as

on the Effective Date, without any further act or deed and without any further payment of the stamp duty or the registration fees.

13.2 Consequent upon the addition of the authorized capital of the Transferor Companies in the authorized capital of the Transferee Company, Clause V of the Memorandum of Association of the Transferee Company shall be replaced as under:-

*"***The Authorized Share Capital of the Company is Rs. 91,15,00,000/- (Ninety One Crore Fifteen Lakhs only) divided into 39,15,00,000 (Thirty Nine Crore Fifteen Lakhs) Equity Shares of Rs. 1/- (Rupee One Only) each and 5,20,00,000 (Five Crore Twenty Lakhs) Preference Shares of Rs. 10 (Rupees Ten only) each."**

13.3 Under the accepted principle of Single Window Clearance, it is hereby provided that the above referred change, viz. Change in the Capital Clause and Change in the Object Clause shall become operative on the Scheme being effective by virtue of the fact that the Shareholders of the Transferee Company, while approving the Scheme as a whole, have also resolved and accorded the relevant consents as required respectively under Sections 13, 14, 61 and 64 of the Companies Act, 2013 or any other provisions of the Act and shall not be required to pass separate resolutions as required under the Act.

14. **DISSOLUTION OF THE TRANSFEROR COMPANIES:**

Upon the Scheme being sanctioned by NCLT, the transferor companies involved in the scheme shall stand dissolved without being winding up as per provision of Section 232(3) of the Companies Act, 2013.

15. **MODIFICATIONS / AMENDMENTS TO THE SCHEME**

15.1 The Board of Directors of the Transferor Companies and/ or the Transferee Company may pass an appropriate resolution to make any modification/amendment to the Scheme as may be deemed necessary or any other authorities under the law or which may be found to be otherwise desirable for settling any question, doubt or difficulties that may arise for implementing and/or carrying out the Scheme and may do all such acts, deeds, matters and things as may be necessary, desirable or expedient for putting the Scheme into effect.

15.2 For the purpose of giving effect to the Scheme or to any modification thereof, the Board of Directors of the Transferor Companies and/or the Transferee Company are hereby authorized to give such directions and/or to take such steps as may be necessary or desirable including any directions for settling any question or doubt or difficulty whatsoever that may arise.

16. **CONDITIONALITY OF THE SCHEME:**

This Scheme is and shall be conditional upon and subject to:

16.1 The sanction or approval under any law or Central Government or any other Agency, Department or Authorities concerned being obtained and granted in respect of the matters in respect of which such sanctions or approvals is required.

16.2 The approval of, and agreement to the Scheme by requisite majority of members of the Transferor Companies and the Transferee Company as applicable or as may be required under the Act and as may be directed by the NCLT.

16.3 The Sanction and orders of the NCLT being obtained by the Transferor Companies and the Transferee Company under

Section 230 to 232 of the Act and other applicable provisions of the Act.

16.4 The Authenticated/Certified Copies of the Orders of the NCLT sanctioning the Scheme being filed with the concerned Registrar of Companies, Gujarat.

17. **SAVING OF CONCLUDED TRANSACTIONS**

The Transfer of undertaking under Clause 4 above and the continuance of proceedings by or against the Transferor Companies above shall not affect any transaction or proceedings already concluded by the Transferor Companies on or after the Appointed Date till the Effective Date, to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Companies in respect thereto as done and executed on behalf of itself.

18. **EXPENSES CONNECTED WITH THE SCHEME**

All costs, charges and expenses of the Transferor Companies and Transferee Company respectively in relation to or in connection with this Scheme and of carrying out and completing the terms and provisions of this scheme and/or incidental to the completion of the said Amalgamation of the said Undertaking of the Transferor Companies in pursuance of this Scheme, whether identifiable or not with Transferee and Transferor Companies, shall be borne and paid by the Transferee Company alone.

19. **OPERATIVE DATE OF THE SCHEME**

This Scheme shall become effective when all the following conditions are fulfilled:

i. The Scheme is sanctioned by the Tribunal under Section 230 to 232 of the Act.

ii. The certified copy of the order of the Tribunal sanctioning the Scheme is filed with the Registrar of Companies, Ahmedabad.

20. **INTEREST OF DIRECTORES:**

The Transferor Companies are wholly owned subsidiary of the Transferee Company, Hence, there is no any material interest of the Board of Directors of any of the Company in this scheme.

21. **EFFECT ON CREDITORS/ KMPs/ PROMOTERS/ MEMBERS:**

- With effect from the Appointed Date, all the creditors of the transferor company's stand transferred to MIPL as per Clause 5.1.4.

- The Transferor Companies are wholly owned subsidiary of the Transferee Company, Hence, there is no any effect on Promoters of the Companies.

- The Transferor Companies are wholly owned subsidiary of the Transferee Company, Hence, there is no any effect on Members of the Companies.

- As per clause 9.1 the service of the employees of the transferor companies remains unchanged. The transferor companies don't have any KMP in accordance with the Section 203 of the Companies Act, 2013.

Annexure - B

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL BENCH AT AHMEDABAD

COMPANY PETITION (CAA) NO. 49 OF 2022

IN

COMPANY APPLICATION (CAA.) NO. 66 OF 2021

In the matter of the Companies Act, 2013

AND

In the matter of Composite Scheme of Arrangement between RB Real Estate Private Limited (Petitioner Transferor Company No. 1), Madhav Urja Private Limited (Petitioner Transferor Company No. 2) and Madhav Heights Private Limited (Petitioner Transferor Company No. 3) with Madhav Infra Projects Limited (Petitioner Transferee Company) and their respective Shareholders and Creditors

AND

In the matter of Sections 230 to 232 and other applicable provisions of the Companies Act, 2013

RB Real Estate Private Limited (RBR)

...Petitioner Company No. 1/Transferor Company No. 1

Madhav Urja Private Limited (MUPL)

... Petitioner Company No. 2/Transferor Company No.2

Madhav Heights Private Limited (MHPL)

... Petitioner Company No. 3/Transferor Company No.3

Madhav Infra Projects Limited (MIPL)

...Petitioner Company No. 4/Transferee Company

PURSHISH FOR PLACING ON RECORD SCHEDULE OF ASSETS

I am placing on record the Schedule of Assets of the 3 Transferor Companies detailing the assets to be transferred to the Transferee Company, pursuant to the sanctioning of the Scheme. Annexed herewith and marked as **ANNEXURE – R1** are the Schedule of Assets of the Transferor Companies. The same may be taken on record.

Date: 17.04.2023

Place Ahmedabad

Advocate for the Petitioner Companies

RB REALESTATE PVT. LTD

Ann- R1 (1)

Madhav House, Near Panchratna Building, Subhanpura, Vadodara 390023
CIN: U45200GJ2006PTC047686 E-Mail: Secretarial@madhavcorp.com

List of Assets of **RB REAL ESTATE PRIVATE LIMITED** ('the Transferor Company') as on the appointed date i.e. April 1, 2020 to be transferred and vested to **MADHAV INFRA PROJECTS LIMITED** pursuant to the Scheme sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

Free hold properties of the Transferor Company

PART I

Sr. No.	Survey No.	Area in Sq. Mtrs.	Description
1	187	15759	Land at Sevasi

PART II

Lease hold properties of the Transferor Company

Sr. No.	Name of the Owner of the Property	Address of Property
	NIL	

PART III

Other stocks, shares, debentures, any other charges in action of the Transferor Company

Sr No.	Particulars	No of Share/units	Face Value / per share/units (INR)	Face Value (INR)
1	Equity shares of Vikrama Architecture & Design Pvt Ltd	1,40,000	10	14,00,000

Part IV: Other Assets

Sr. No.	Particulars	INR
1	Cash on hand	550
2	Bank Balance	1,24,932
3	Other advances	1,50,000
	Total	2,75,482

For, R.B REAL ESTATE PRIVATE LIMITED

ASHOK KHURANA
DIRECTOR
[DIN: 00003617]

R.B. REAL ESTATE PVT. LTD. VADODARA

MADHAV URJA PRIVATE LIMITED.

101, GAYATRI APPARTMENT, B, TOWER 74, ALKAPURI SOCIETY, VADODARA -390005
Phone: +91-76000 31747, secretarial@madhavcorp.com
CIN: U40106GJ2012PTC071267

List of Assets of **MADHAV URJA PRIVATE LIMITED** ('the Transferor Company') as on the appointed date i.e. April 1, 2020 to be transferred and vested to **MADHAV INFRA PROJECTS LIMITED** pursuant to the Scheme sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

Free hold properties of the Transferor Company

PART I

Sr. No.	Survey No.	Area in Sq. Mtrs.	Description
1	366	25192	Land at Village Dudhai Village, Anjar, Gujarat, 370110
2	362, 363, 364, 375	32577	Land at Village Versamedi, Anjar, Gujarat, 370110

PART II

Lease hold properties of the Demerged Company

Sr. No.	Name of the Owner of the Property	Address of Property
1	NIL	NIL

PART III

Other stocks, shares, debentures, any other charges in action of the Demerged Company

Sr No.	Particulars	No of Share/units	Face Value / per share/units (INR)	Face Value (INR)
1	NIL	NIL	NIL	NIL

Part IV: Other Assets

Sr. No.	Particulars	INR
1	Cash on hand	500
2	Bank Balance	1,55,532
	Total	1,56,032

For, MADHAV URJA PRIVATE LIMITED

AMIT KHURANA
DIRECTOR
[DIN: 00003626]

MADHAV URJA PRIVATE LIMITED

MADHAV HEIGHTS PRIVATE LIMITED
Madhav House, Plot No. 1, Nr. Pancheshwar Building, Subhanpura, Vadodara-390 023
Phone: +91-76639 31747, secretarial@madhavcorp.com
CIN No. U45200GJ2010PTC061012

List of Assets of **MADHAV HEIGHTS PRIVATE LIMITED** ('the Transferor Company') as on the appointed date i.e. April 1, 2020 to be transferred and vested to **MADHAV INFRA PROJECTS LIMITED** pursuant to the Scheme sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

Free hold properties of the Transferor Company

PART I

Sr. No.	Survey No.	Area in Sq. Mtrs.	Description
1	287	7487	Land at Village Dudhai Village, Anjar, Gujarat, 370110
2	288	15075	Land at Village Versamedi, Anjar, Gujarat, 370110
3	289	29947	Land at Village Versamedi, Anjar, Gujarat, 370110
4	290	16390	Land at Village Versamedi, Anjar, Gujarat, 370110
5	291	17806	Land at Village Versamedi, Anjar, Gujarat, 370110

PART II

Lease hold properties of the Transferor Company

Sr. No.	Name of the Owner of the Property	Address of Property
1	NIL	NIL

PART III

Other stocks, shares, debentures, any other charges in action of the Transferor Company

Sr No.	Particulars	No of Share/units	Face Value / per share/units (INR)	Face Value (INR)
1	NIL	NIL	NIL	NIL

MADHAV HEIGHTS PVT. LTD.

MADHAV HEIGHTS PRIVATE LIMITED
Madhav House, Plot No. 4, Nr. Panchtarang Building, Subhanpura, Vadodara-390 023
Phone: +91-[illegible], [illegible]@[illegible]/corp.com
C.I.N. No. [illegible]

Part IV: Other Assets

Sr. No.	Particulars	INR
1	Cash on hand	3,290
2	Bank Balance	61,187
3	Misc. Amount Receivable	74,197
4	Other advances	1,50,000
	Total	2,88,674

For, MADHAV HEIGHTS PRIVATE LIMITED

ASHOK KHURANA
DIRECTOR
[DIN: 00003617]

MADHAV HEIGHTS PVT. LTD.

COMPANY LAW TRIBUNAL